

operated after execution of the Partnership Agreement, and that but for the Incorrect Legal Description the Corp. Grant Deed would have conveyed the true and correct lot, specifically the Property, to Plaintiff.”

Here, in present Third Amended Cross-Complaint, there is nothing requiring the correction of title to the property to imbue Bruce Auerbach with formerly missing standing to bring the first cause of action for breach of fiduciary duty.

Capacity of Bertha Wong:

The capacity of Bertha Wong is not relevant to the present demurrer or motion to strike. The defect(s) at issue in these motions are on the face of the third amended cross-complaint. Bertha Wong is not submitting declarations, testifying or otherwise submitting evidence at this hearing.

Cross-Defendants’ Requests for Judicial Notice GRANTED. The court takes judicial notice of the following:

1. Cross-Complaint CVPS 2402052
2. First Amended Cross-Complaint CVPS 2402052
3. Second Amended Cross-Complaint CVPS 2402052
3. Third Amended Cross-Complaint CVPS 2402052
4. This Court’s ruling on 2.24.26 regarding the demurrer to the Second Amended Cross-Complaint CVPS 2402052
5. Verified Complaint from CVPS 2105040

Cross-Defendants Bertha Wong and Irene Weingarten Demurrer to the 1st Cause of Action of the Third Amended Cross-Complaint SUSTAINED without leave to amend.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	MOTION TO STRIKE 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS BERTHA WONG AND IRENE WEINGARTEN

Tentative Ruling: No tentative ruling. Motion is MOOT in light of the court’s ruling as to the demurrers of Cross-Defendants Bertha Wong and Irene Weingarten.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2405849	HOLMES VS HERRIN	MOTION TO DETERMINE GOOD FAITH SETTLEMENT ON COMPLAINT OF DONNA HOLMES BY AVONDALE GOLF CLUB

Tentative Ruling: No tentative ruling. A hearing shall be conducted.